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Supreme Court of British Columbia â New Westminster No. NW-250981

SYNTHETIC TEST FIXTURE - all parties, counsel, addresses and figures are fictional. Not for filing.

FORM 33 (RULE 8-1 (9))

No. NW-250981
New Westminster Registry

IN THE SUPREME COURT OF BRITISH COLUMBIA

BETWEEN:
APEX STRUCTURES CORP.
PLAINTIFF / APPLICANT
AND:
CASCADE GENERAL CONTRACTING LTD.
DEFENDANT / RESPONDENT
AND:
PRO-TECH ROOFING SYSTEMS INC.
PROPOSED ADDED DEFENDANT / RESPONDENT

APPLICATION RESPONSE

Application response of: The Defendant, Cascade General Contracting Ltd. (the "Defendant"), and the
Proposed Added Defendant, Pro-Tech Roofing Systems Inc. ("Pro-Tech") (together, the "Respondents")

PART 1: ORDERS CONSENTED TO

The Respondents consent to the order granting the Plaintiff leave to amend the Notice of Civil Claim
in respect of the particulars of the Prime Contract and the Project

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description only, being paragraphs
1 and 2 of the Proposed Amended Claim. Consent is given without admission
of any allegation.

PART 2: ORDERS OPPOSED

The Respondents oppose the granting of the orders sought in paragraphs 2, 3
and 4 of Part 1 of the
Notice of Application, being the addition of Pro-Tech as a defendant, and
the directions for service and
responsive pleadings that depend on that addition.

PART 3: ORDERS ON TERMS

In the alternative, if leave is granted to add Pro-Tech, the Respondents
propose that:
(a) the Plaintiff pay the costs of the application thrown away, in any
event of the cause;
(b) the time for Pro-Tech to file a Response to Civil Claim run from the
date of service of the
Amended Notice of Civil Claim, with an extension of forty-five (45)
days from the date of this
application’s disposition; and
(c) the Plaintiff particularize the allegations against Pro-Tech in a
further amended pleading within
fourteen (14) days, identifying each act of negligence and the specific
roof components alleged to
be defective.

PART 4: FACTUAL BASIS

1. The Plaintiff’s claim was first pleaded on March 4, 2026, and the

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Defendant’s Response to Civil Claim

was filed on April 6, 2026. The Plaintiff has known of the water ingress since at least July 2025 and

gave written notice of it to the Defendant on July 9, 2025. The Plaintiff therefore knew, or ought to

have known, the material facts of its claim against the roofing contractor no later than that date.

2. The Plaintiff’s proposed claim against Pro-Tech is based on an engineering inspection dated

September 22, 2026, that the Plaintiff obtained more than fourteen (14) months after the water ingress

was first documented. The inspection does not identify any new defect; it re-states a condition the

Plaintiff had documented since 2025.

3. Pro-Tech did not design the building envelope and did not select the roof drainage layout. Those

functions were performed by the architect and mechanical engineer engaged under the Prime Contract.

The Proposed Amended Claim does not plead any particular act or omission by Pro-Tech that is distinct

from the Defendant’s subcontract scope.

4. Adding Pro-Tech at this stage would require Pro-Tech to investigate, retain its own engineering

consultant, and respond to a claim that was not part of the original proceeding. Pro-Tech has no

prior opportunity to preserve its own site records from the period of installation, which closed

more than eighteen (18) months ago.

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5. Under Supreme Court Civil Rule 6-2 the new party’s presence must be necessary for the court to
adjudicate the questions effectively and completely. The existing claim against the Defendant, as
subcontractor-supervisor, can be determined without Pro-Tech being a party. The Plaintiff can pursue
Pro-Tech in a separate action if it wishes, and the Respondents do not accept that a separate action
would be a duplication.

PART 5: LEGAL BASIS

1. Supreme Court Civil Rule 6-1(1): leave to amend is not granted where the amendment is not properly
particularized, discloses no reasonable claim, or would cause prejudice that cannot be compensated for
by costs or by an adjournment.

2. Limitation Act, S.B.C. 2012, c. 13: the Plaintiff’s knowledge of the material facts is the relevant
date for the basic limitation period under section 6, and the Plaintiff’s claim against Pro-Tech is
out of time if the Plaintiff knew of the defect in 2025, and no later discoverability date is
available on the evidence. The Respondents rely on the two-year basic period under section 6 and
the discoverability provisions of section 8, and say the Plaintiff’s own correspondence fixes the
knowledge date.

3. Supreme Court Civil Rule 6-2 (adding parties): the joinder must be necessary, not merely convenient.

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4. Practice Direction 73 (Virtual Chambers).

5. Chaston Construction Corp. v. Henderson Land, 2002 BCCA 357 (cited by the Plaintiff). The Respondents say the principle of liberal amendment is not a license to add a party whose limitation defence is apparent on the face of the record, and the authority tab in the Application Record is unverified.

PART 6: MATERIAL TO BE RELIED ON

1. Affidavit #1 of Dana Whitcomb (Pro-Tech), sworn November 14, 2026 (to be filed).
2. Affidavit #1 of Robert Lindqvist, sworn November 14, 2026 (to be filed).
3. The Notice of Civil Claim filed March 4, 2026, and the Response to Civil Claim filed April 6, 2026.
4. The July 9, 2025 notice letter from the Plaintiff to the Defendant.

The Respondents estimate that the application will take twenty (20) minutes.

Dated: November 17, 2026

_____

Robert Lindqvist,
Counsel for the Defendant

Dana Okafor,
Counsel for the Proposed Added Defendant